

1 ENGROSSED HOUSE
2 BILL NO. 3674

By: Provenzano and McCane of
the House

3 and

4 McIntosh of the Senate
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8 An Act relating to schools; amending Section 1,
9 Chapter 281, O.S.L. 2023, as amended by Section 1,
10 Chapter 354, O.S.L. 2024 (70 O.S. Supp. 2025, Section
11 5-148.1), which relates to the school resource
12 officer program; requiring sexual assault reports to
13 be given to a law enforcement agency; requiring
14 school districts to verify completion of certain
15 training; amending 70 O.S. 2021, Section 3311.4,
16 which relates to continuing law enforcement training;
17 requiring school resource officers to annually
18 complete one hour of CLEET continuing education;
19 amending 70 O.S. 2021, Section 3311.5, as amended by
20 Section 1, Chapter 399, O.S.L. 2022 (70 O.S. Supp.
21 2025, Section 3311.5), which relates to law
22 enforcement certification; requiring school resource
23 officers to attend certain evidence-based sexual
24 assault and sexual violence training; clarifying who
pays the cost of training; and providing an effective
date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 281, O.S.L.
2023, as amended by Section 1, Chapter 354, O.S.L. 2024 (70 O.S.
Supp. 2025, Section 5-148.1), is amended to read as follows:

1 Section 5-148.1. A. The State Department of Education shall
2 establish and maintain a three-year pilot program known as the
3 School Resource Officer Program.

4 B. School resource officers employed or contracted by school
5 districts participating in the School Resource Officer Program shall
6 successfully complete law enforcement active shooter emergency
7 response training given by the Council on Law Enforcement Education
8 and Training (CLEET) and approved by the Department of Public
9 Safety.

10 C. 1. A school district participating in the School Resource
11 Officer Program shall give first priority to employing or
12 contracting with a law enforcement officer with sworn authority and
13 training in school-based law enforcement and crisis response who is
14 assigned by an employing law enforcement agency to work
15 collaboratively with one or more schools using community-oriented
16 policing concepts.

17 2. If a law enforcement agency that serves the area in which a
18 school district is located is unwilling or unable to provide a law
19 enforcement officer described in paragraph 1 of this subsection, a
20 participating school district may employ or contract with a retired
21 law enforcement officer or an armed security guard who is licensed
22 pursuant to the Oklahoma Security Guard and Private Investigator
23 Act. The law enforcement agency that serves the area in which the
24 school district is located shall preauthorize any individual

1 employed or contracted with under this paragraph. The school shall
2 require a background check on the individual. The law enforcement
3 agency that serves the area in which the school district is located
4 shall allow an authorized individual employed or contracted with the
5 school district access to the preauthorizing agency's radio system,
6 pursuant to this paragraph, and a police band radio system which may
7 be used by the individual in the performance of his or her duties to
8 be paid for by the employing district. A school district may use
9 funds from the School Security Revolving Fund created pursuant to
10 Section 5-148.2 of this title to cover the cost of the radio system.

11 3. All reports of sexual assault shall be reported to a law
12 enforcement agency.

13 D. Each school district shall be responsible for verifying that
14 every school resource officer under its employ or contract has
15 received or is scheduled to receive the training as required by
16 subsection C of Section 3311.5 of this title.

17 SECTION 2. AMENDATORY 70 O.S. 2021, Section 3311.4, is
18 amended to read as follows:

19 Section 3311.4. A. Beginning January 1, 2008, and annually
20 thereafter, every active full-time peace officer, certified by the
21 Council on Law Enforcement Education and Training (CLEET) pursuant
22 to Section 3311 of this title, shall attend and complete a minimum
23 of twenty-five (25) hours of continuing law enforcement training
24 accredited or provided by CLEET which shall include a mandatory two

1 (2) hours on mental health issues. Effective November 1, 2019,
2 CLEET shall establish appropriate training resources which shall
3 include the policies and protocols for responding to sexual assault
4 calls, guidelines for the collection and maintenance of sexual
5 assault kits and continuing education on trauma-informed sexual
6 assault response and intervention, and shall require all CLEET-
7 certified law enforcement officers to complete such training on a
8 regular basis to be determined by CLEET. Beginning with the
9 effective date of this act, and annually thereafter, every person
10 acting in the capacity of a school resource officer (SRO), as
11 authorized by Section 5-148.1 of this title, shall attend and
12 complete a minimum of one (1) hour of continuing education
13 accredited or provided by CLEET. CLEET shall promulgate rules to
14 enforce the provisions of this section and shall enter into
15 contracts and agreements for the payment of classroom space,
16 training, food, and lodging expenses as may be necessary for law
17 enforcement officers attending such training in accordance with
18 subsection B of Section 3311 of this title. Such training and
19 seminars shall be conducted in all areas of this state at technology
20 center schools, institutions of higher education, or other approved
21 sites.

22 B. Beginning January 1, 2017, and annually thereafter, every
23 active reserve peace officer, certified by CLEET pursuant to Section
24 3311 of this title, shall attend and complete a minimum of eight (8)

1 hours of continuing law enforcement training accredited or provided
2 by CLEET which shall include a mandatory one (1) hour on mental
3 health issues.

4 C. Every inactive full-time or reserve peace officer, certified
5 by CLEET, shall be exempt from these requirements during the
6 inactive status. Upon reentry to full-time active status, the peace
7 officer shall be required to comply with subsection A of this
8 section. If a full-time certified peace officer has been inactive
9 for five (5) or more years, the officer must complete refresher
10 training as prescribed by CLEET and which shall include a minimum of
11 four (4) hours of mental health education and training, within one
12 (1) year of employment. Upon reentry to active reserve status, the
13 peace officer shall be required to comply with subsection B of this
14 section. If a certified reserve officer has been inactive for five
15 (5) or more years, the certified reserve officer shall complete a
16 legal update as prescribed by CLEET. The Director of CLEET may
17 waive these requirements based on review of all records of
18 employment and training.

19 D. Every tribal officer who is commissioned by an Oklahoma law
20 enforcement agency pursuant to a cross-deputization agreement with
21 the State of Oklahoma or any political subdivision of the State of
22 Oklahoma pursuant to the provisions of Section 1221 of Title 74 of
23 the Oklahoma Statutes shall comply with the provisions of this
24 section.

1 E. Any active full-time or reserve certified peace officer, or
2 CLEET-certified cross-deputized tribal officer who fails to meet the
3 annual training requirements specified in this section, shall be
4 subject to having the certification of the peace officer suspended,
5 after the peace officer and the employer have been given written
6 notice of noncompliance and a reasonable time, as defined by the
7 Council, to comply with the provisions of this section. A peace
8 officer shall not be employed in the capacity of a peace officer
9 during any period of suspension. The suspension period shall be for
10 a period of time until the officer files a statement attesting to
11 full compliance with the provisions of this section. Suspension of
12 peace officer certification shall be reported to the district
13 attorney for the jurisdiction in which the officer is employed, the
14 liability insurance company of the law enforcement agency that
15 employed the peace officer, the chief elected official of the
16 governing body of the law enforcement agency and the chief law
17 enforcement officer of the law enforcement agency. Any officer
18 whose certification is suspended pursuant to this section may
19 request a hearing with CLEET. Such hearings shall be governed by
20 the Administrative Procedures Act except that the affected officer
21 has the burden to show CLEET why CLEET should not have the
22 certification of the officer suspended.

23 F. All certified, active full-time or reserve peace officers
24 employed, commissioned or appointed for a period of ninety (90) days

1 in a calendar year, who become inactive prior to the end of a
2 calendar year, are responsible for meeting mandatory continuing
3 education requirements as set forth in this section upon return to
4 active full-time or reserve peace officer status within sixty (60)
5 days of the date of return to employment, commission or appointment.
6 Failure to complete the mandatory continuing education within sixty
7 (60) days may result in disciplinary action as set forth in CLEET
8 Rules at OAC 390:2. Full-time or reserve certified peace officers
9 who return to active status within the calendar year they become
10 inactive must complete the annual mandatory continuing education
11 requirements outlined in this section within the remaining portion
12 of the calendar year.

13 G. Peace officers with full-time certification who worked
14 during a calendar year only as a reserve officer are required to
15 complete only the training requirements for reserve certification.
16 For purposes of the requirements outlined in subsection F of this
17 section, full-time peace officers who worked both in the capacity of
18 a full-time peace officer and reserve officer in a calendar year
19 must complete full-time continuing education requirements.

20 SECTION 3. AMENDATORY 70 O.S. 2021, Section 3311.5, as
21 amended by Section 1, Chapter 399, O.S.L. 2022 (70 O.S. Supp. 2025,
22 Section 3311.5), is amended to read as follows:

23 Section 3311.5. A. On and after November 1, 2007, the Council
24 on Law Enforcement Education and Training (CLEET), pursuant to its

1 authority granted by Section 3311 of this title, shall include in
2 its required basic training courses for law enforcement
3 certification a minimum of four (4) hours of education and training
4 relating to recognizing and managing a person appearing to require
5 mental health treatment or services. The Council shall further
6 offer a minimum of four (4) hours of education and training on
7 specific mental health issues pursuant to Section 3311.4 of this
8 title to meet the annual requirement for continuing education in the
9 areas of mental health issues.

10 B. By January 1, 2008, CLEET, pursuant to its authority granted
11 by Sections 3311 and 3311.4 of this title, shall include in its
12 required courses of study for law enforcement certification a
13 minimum of six (6) hours of evidence-based sexual assault and sexual
14 violence training. A portion of the sexual assault and sexual
15 violence training shall include instruction presented by a certified
16 sexual assault service provider.

17 C. By January 1, 2012, every active full-time peace officer,
18 previously certified by CLEET pursuant to Section 3311 of this
19 title, shall be required to attend and complete the evidence-based
20 sexual assault and sexual violence training provided in subsection B
21 of this section. Every person acting in the capacity of a school
22 resource officer (SRO), as authorized by Section 5-148.1 of this
23 title, shall be required to attend and complete the evidence-based
24 sexual assault and sexual violence training provided in subsection B

1 of this section within six (6) months of the effective date of this
2 act or within six (6) months of starting employment with a school
3 district, whichever is later. The school resource officer, or the
4 private company contracting the resource officer out to the school,
5 shall be responsible for the cost of the training required by this
6 subsection.

7 D. CLEET shall promulgate rules to enforce the provisions of
8 subsections B and C of this section and shall, with the assistance
9 of certified sexual assault service providers, establish a
10 comprehensive integrated curriculum for the teaching of evidence-
11 based sexual assault and sexual violence issues.

12 E. The Council is required to update that block of training or
13 course materials relating to legal issues, concepts, and state laws
14 annually, but not later than ninety (90) days following the
15 adjournment of any legislative session.

16 F. By January 1, 2009, CLEET, pursuant to its authority granted
17 by Sections 3311 and 3311.4 of this title, shall include in its
18 required courses of study for law enforcement certification oil
19 field equipment theft training.

20 G. By January 1, 2012, CLEET, pursuant to its authority granted
21 by Sections 3311 and 3311.4 of this title, shall establish and
22 include in its required courses of study for law enforcement
23 certification a minimum of eight (8) hours of evidence-based
24 domestic violence and stalking investigation training. The training

1 should include, at a minimum, the importance of reporting domestic
2 violence incidents, determining the predominant aggressor, evidence-
3 based investigation of domestic violence and stalking, lethality
4 assessment, and personal safety planning necessary at the pretrial
5 stages of a potential criminal case. A portion of the training
6 shall include instruction presented by an expert victim advocate
7 selected from recommendations provided by the Office of the Attorney
8 General or the Domestic Violence Fatality Review Board. The
9 training shall be developed in collaboration with the Domestic
10 Violence Fatality Review Board, and where applicable, shall replace
11 existing domestic violence and stalking courses currently required.

12 H. By January 1, 2012, the evidence-based domestic violence and
13 stalking investigation curriculum developed in collaboration with
14 the Domestic Violence Fatality Review Board shall be submitted to
15 the Council for approval.

16 I. CLEET shall establish the training provided in subsection G
17 of this section as a part of CLEET's peace officer continuing
18 education program and develop a plan to train full-time peace
19 officers previously certified by CLEET pursuant to Section 3311 of
20 this title where applicable. The Office of the Attorney General
21 shall provide a list of expert victim advocates that are available
22 to assist in the training.

23 J. The Council is authorized to pay for and send training staff
24 and employees to one or more training and education courses in

1 jurisdictions outside this state for the purpose of expanding
2 curriculum, training skill development, and general knowledge within
3 the field of law enforcement education and training.

4 K. On and after November 1, 2013, CLEET, pursuant to its
5 authority granted by Section 3311 of this title, shall include in
6 its required basic training courses for law enforcement
7 certification a minimum of two (2) hours of education and training
8 relating to recognizing and managing a person experiencing dementia
9 or Alzheimer's disease.

10 L. By November 1, 2019, CLEET shall establish appropriate
11 training resources focused on protocol for handling and processing
12 sexual assault calls. The training shall include, but not be
13 limited to:

- 14 1. How to handle the sexual assault call upon first contact;
- 15 2. Determining when the assault occurred;
- 16 3. Where to take the victim;
- 17 4. Questioning witnesses and collecting evidence; and
- 18 5. Informing and assisting the victim in accessing resources,
19 help and information.

20 M. The Council shall promulgate rules to evaluate and approve
21 municipalities and counties that are deemed capable of conducting
22 separate basic law enforcement training academies in their
23 jurisdiction and to certify officers successfully completing such
24 academy training courses. Upon application to the Council, any

1 municipality with a population of sixty-five thousand (65,000) or
2 more or any county with a population of five hundred thousand
3 (500,000) or more shall be authorized to operate a basic law
4 enforcement academy. In addition, upon application and approval
5 from the Council, a municipality with a population under sixty-five
6 thousand (65,000) or a county with a population under five hundred
7 thousand (500,000) may be authorized to operate a basic law
8 enforcement academy; provided, however, the Council may approve no
9 more than two such applications per year. The Council shall approve
10 an application when the municipality or county making the
11 application meets the criteria for a separate training academy and
12 demonstrates to the satisfaction of the Council that the academy has
13 sufficient resources to conduct the training, the instructional
14 staff is appropriately trained and qualified to teach the course
15 materials, the curriculum is composed of comparable or higher
16 quality course segments to the CLEET academy curriculum, and the
17 facilities where the academy will be conducted are safe and
18 sufficient for law enforcement training purposes. Any municipality
19 or county authorized to operate a basic law enforcement academy
20 after November 1, 2007, shall not be eligible to receive funds
21 pursuant to subsection E of Section 1313.2 of Title 20 of the
22 Oklahoma Statutes. The Council shall not provide any funding for
23 the operation of any separate training academy authorized by this
24 subsection.

1 N. Any municipality or county that, prior to November 1, 2007,
2 was authorized to conduct a basic law enforcement academy shall
3 continue to receive funding pursuant to subsection E of Section
4 1313.2 of Title 20 of the Oklahoma Statutes.

5 O. The Council shall promulgate rules to evaluate and approve
6 an application submitted by the Department of Corrections for a
7 separate training academy. Pursuant to the promulgated rules, the
8 Council shall approve a separate training academy once the
9 Department:

10 1. Has met the criteria for a separate training academy;

11 2. Demonstrates to the satisfaction of the Council that the
12 academy has sufficient resources to conduct the training;

13 3. Has the instructional staff appropriately trained and
14 qualified to teach the course materials;

15 4. Has the curriculum composed of comparable or higher quality
16 course segments to the CLEET academy curriculum; and

17 5. Has the facilities where the academy will be conducted that
18 are safe and sufficient for law enforcement training purposes.

19 The Council shall not provide any funding for the operation of
20 any separate training academy authorized by this subsection.

21 SECTION 4. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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8 _____
9 Presiding Officer of the Senate